

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

7. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

On April 24, 2026, Respondent filed a Request for Order regarding property control orders. All required documents were served by mail on April 27th.

Petitioner has not filed a Responsive Declaration to Request for Order. However, this RFO reiterates requests that were originally filed ex parte. She did file an opposition to the ex parte on April 23rd.

Respondent asks the court to award him the property located at 3301 Ahwahnee Way in Cool, California. Alternatively, he requests exclusive use and possession of the property within two weeks of the court's order.

The request for sole use and possession of the home is denied. However, the court previously ordered the sale of the subject property. The basis for Respondent's request is that Petitioner is interfering with the ability to sale the home. In furtherance of the court's prior order, the parties are ordered to take no action which would delay, hinder, or otherwise prevent the sale, including actions which would prevent cleaning, repairs, and maintenance or showing of the home. By no later than July 15, 2026, the parties are ordered to list the home for sale and to place a for sale sign in front of the home. Failure to do so will result in daily sanctions for each day the order is not complied with. The selected real estate professional shall choose the listing price, including any amendments thereto, and the parties are to comply with the real estate professional's decision. The parties are ordered to cooperate with the real estate professional to make the home available for showings and to communicate with the real estate professional as needed. The parties are ordered to accept any reasonable offer for the purchase of the home if one is received. The parties are to sign all documents related to the sale of the home in a timely manner. The court reserves jurisdiction over all aspects of the sale and distribution of the net proceeds of the sale, including, but not limited to, the court's authority to direct the clerk to act as elisor for Petitioner's signature if necessary.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE REQUEST FOR SOLE USE AND POSSESSION OF THE HOME IS DENIED. HOWEVER, THE COURT PREVIOUSLY ORDERED THE SALE OF THE SUBJECT PROPERTY. THE BASIS FOR RESPONDENT'S REQUEST IS THAT PETITIONER IS INTERFERING WITH THE ABILITY TO SALE THE HOME. IN FURTHERANCE OF THE

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COURT'S PRIOR ORDER, THE PARTIES ARE ORDERED TO TAKE NO ACTION WHICH WOULD DELAY, HINDER, OR OTHERWISE PREVENT THE SALE, INCLUDING ACTIONS WHICH WOULD PREVENT CLEANING, REPAIRS, AND MAINTENANCE OR SHOWING OF THE HOME. BY NO LATER THAN JULY 15, 2026, THE PARTIES ARE ORDERED TO LIST THE HOME FOR SALE AND TO PLACE A FOR SALE SIGN IN FRONT OF THE HOME. FAILURE TO DO SO WILL RESULT IN DAILY SANCTIONS FOR EACH DAY THE ORDER IS NOT COMPLIED WITH. THE SELECTED REAL ESTATE PROFESSIONAL SHALL CHOOSE THE LISTING PRICE, INCLUDING ANY AMENDMENTS THERETO, AND THE PARTIES ARE TO COMPLY WITH THE REAL ESTATE PROFESSIONAL'S DECISION. THE PARTIES ARE ORDERED TO COOPERATE WITH THE REAL ESTATE PROFESSIONAL TO MAKE THE HOME AVAILABLE FOR SHOWINGS AND TO COMMUNICATE WITH THE REAL ESTATE PROFESSIONAL AS NEEDED. THE PARTIES ARE ORDERED TO ACCEPT ANY REASONABLE OFFER FOR THE PURCHASE OF THE HOME IF ONE IS RECEIVED. THE PARTIES ARE TO SIGN ALL DOCUMENTS RELATED TO THE SALE OF THE HOME IN A TIMELY MANNER. THE COURT RESERVES JURISDICTION OVER ALL ASPECTS OF THE SALE AND DISTRIBUTION OF THE NET PROCEEDS OF THE SALE, INCLUDING, BUT NOT LIMITED TO, THE COURT'S AUTHORITY TO DIRECT THE CLERK TO ACT AS ELISOR FOR PETITIONER'S SIGNATURE IF NECESSARY.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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8. JESSIE LUDDY V. LOGAN LUDDY

25FL0275

On March 3, 2026, the parties appeared before the court for hearing on competing requests for a Domestic Violence Restraining Order (DVRO) filed by each party against the other. The parties reached agreements on the terms of the order and were referred to Child Custody Recommending Counseling (CCRC) for custody and visitation orders. A review hearing was set for the present date.

Respondent filed two declarations on March 19, 2026. They were personally served on March 29th.

The parties attended CCRC on April 6, 2026. They were unable to reach any agreements therefore a report with recommendations was prepared on May 21, 2026. It was mailed to the parties on May 22, 2026.

After reviewing the filings as outlined above the court finds the recommendations contained in the May 21, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court with one modification. The Parenting Time section of the report is amended to state as follows: "Father shall have temporary sole physical custody of the child. Mother shall have professionally supervised visits twice a week for two (2) hours per visit. Unless otherwise agreed upon by the parties, visits shall be supervised by Family Time Visitation Center, located at 3300 Coach Lane, Suite B-112, Cameron Park, CA 95682."

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE MAY 21, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH ONE MODIFICATION. THE PARENTING TIME SECTION OF THE REPORT IS AMENDED TO STATE AS FOLLOWS: "FATHER SHALL HAVE TEMPORARY SOLE PHYSICAL CUSTODY OF THE CHILD. MOTHER SHALL HAVE PROFESSIONALLY SUPERVISED VISITS TWICE A WEEK FOR TWO (2) HOURS PER VISIT. UNLESS OTHERWISE AGREED UPON BY THE PARTIES, VISITS SHALL BE SUPERVISED BY FAMILY TIME VISITATION CENTER, LOCATED AT 3300 COACH LANE, SUITE B-112, CAMERON PARK, CA 95682."